Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1494
Claimant:	Carl Herrera
Adjuster:	Alison Sweeney

4 Aug 2024
Reported by the insured driver that a vehicle struck their parked car in a store parking lot, with the claimant listed as the other driver. The claimant is not represented by an attorney, and the claim was opened for property damage and a reported wrist injury.

11 Aug 2024
Recorded the claimant's account of the collision, which described a slow reversing impact at low speed. The claimant gave the same account in every conversation since first contact.

5 Sep 2024
Obtained the photographs and a statement from a store employee who saw the contact. The photos show damage consistent with the described impact, and the other driver's account matches the claimant's.

15 Sep 2024
Police confirmed the claimant was in the vehicle at the scene, and no earlier damage to the vehicle is known from prior claims or inspection notes. Nothing in the file suggests the damage predates the policy's coverage start.

20 Oct 2024
Reviewed the medical records provided by the claimant. The wrist fracture is a plausible injury for a collision of this kind, and treatment followed a usual course, tapering off as the claimant improved.

11 Nov 2024
The records also show the claimant received treatment for the same condition well before this collision, and most of the current complaints appear to relate to that earlier history. The adjuster noted this for the medical review and the injury evaluation.

21 Jan 2025
Cofnirmed the driver is named on the policy and that the vehicle was insured at the time of the loss. The file is being sent for the property damage settlement and the injury component review.

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Recorded Statement

Claim number:	C-1494
Statement of:	Carl Herrera
Taken by:	Alison Sweeney
Date:	31 Jul 2024

Q: Thank you for taking the time to give this recorded statement. Please state your full name for the record.

A: I'd rather not put my full name on it yet, my attorney said to keep things brief until we've reviewed everything.

Q: That's understandable. Can you describe where the collision happened?

A: It was in a parking lot at a shopping center in Katy, Texas. I was pulling out of a space near the main entrance.

Q: What were you doing right before the impact?

A: I had just checked my mirror and started reversing slowly. I was going maybe five miles an hour.

Q: Did you see the other vehicle before it hit you?

A: Not really. I heard a horn and then felt the impact on the driver's side rear of my car.

Q: Which direction was the other vehicle traveling?

A: It was coming down the main aisle, I think heading toward the exit. It didn't look like it slowed down.

Q: Were you injured?

A: Yes. I put my right hand out to brace myself against the steering wheel and I landed on it wrong. The doctor says my wrist is fractured and I'm in a cast.

Q: Did you receive medical treatment at the scene or afterward?

A: An ambulance took me to an urgent care clinic that same afternoon. I've had two follow-up visits since then.

Q: Is there anything else you think I should know about the collision?

A: Only that there were several people nearby, and I think a couple of them saw what happened. I didn't get their contact information, unfortunately.

Q: Thank you. We'll follow up with you in writing about next steps.

A: Okay, thanks.